

How to Complete A Settlement Conference Brief

Instructions

A **settlement conference** is a meeting between you, the other person, and a judge. In a settlement conference, you and the other party may be able to work out your family law issues without having to go to trial.

If a request for a settlement conference has been granted or ordered by a judge, you must complete a **Settlement Conference Brief**. This Brief will tell the other person and the Court what your position is on the issue(s) that you will discuss in your settlement conference.

Completing a Settlement Conference Brief

You can fill out this form by hand or you can download and fill out this form electronically at <https://www.court.nl.ca/supreme/rules-practice-notes-and-forms/family/general/> (If you fill out the form electronically, you must still print the form, provide it to the Court, and give a copy to the other person).

If you need more space to fill out any section of this form, attach an extra page and indicate which section is continued on the extra page.

Filing a Settlement Conference Brief

You must make **1 extra copies** of your signed Settlement Conference Brief. To file your Brief, bring the original Brief to the Supreme Court location where your family law file is or mail the Brief to that Supreme Court location.

You must file your Settlement Conference Brief **at least 7 days** before your scheduled settlement conference date.

Serving a Settlement Conference Brief

You must give a copy of your Settlement Conference Brief to the other person **at least 7 days** before your scheduled settlement conference date. This is called *service*. You can serve the other person by: personal service (an adult, who is not you, can hand-deliver the document), leaving a copy with the other person's lawyer, leaving a copy at the other person's address, registered mail/courier, or regular mail. You can also serve the other person using fax, email, or electronic document exchange, if the other person has provided that information.

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227

Grand Falls-Windsor: (709) 292-4260

Gander: (709) 256-1115

Happy Valley-Goose Bay: (709) 896-7892

Grand Bank: (709) 832-1720

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

Settlement Conference Brief (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Received at _____, Newfoundland and
Labrador, this _____ day of _____, 20____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ APPLICANT
(Print full name)

AND: _____ RESPONDENT
(Print full name)

AND: _____ ☐ NOT APPLICABLE
(Print full name) ☐ SECOND APPLICANT
☐ SECOND RESPONDENT

Part A Background

Fill in the information below:

Applicant's Full Name Write previous names in brackets			
Applicant's Date of Birth	Month:	Day:	Year:
Respondent's Full Name Write previous names in brackets			
Respondent's Date of Birth	Month:	Day:	Year:

☐ Check this box if there is a proceeding against more than one Respondent. Attach an extra page to provide the details of the other Respondent(s).

Fill in the information about your relationship below:

Relationship of the parties (eg. married)				
Date the parties started living together	Month:	Day:	Year:	OR ☐ Not applicable
Date of marriage	Month:	Day:	Year:	OR ☐ Not applicable
Place of marriage				OR ☐ Not applicable
Prior to the marriage, you were	☐ Unmarried	☐ Divorced	☐ Widowed	OR ☐ Not applicable
Prior to the marriage, the other party was	☐ Unmarried	☐ Divorced	☐ Widowed	OR ☐ Not applicable
Date of separation	Month:	Day:	Year:	OR ☐ Not applicable
Date of divorce	Month:	Day:	Year:	OR ☐ Not applicable

☐ Check this box if there is a proceeding against more than one Respondent. Attach an extra page to provide the details of your relationship with the other Respondent(s).

Fill in the information for every child of your relationship (Include children under and over 19 and non-dependent children):

	Child 1	Child 2
Child's Full Name		
Date of Birth (month/day/year)		
Child is Currently Living With (Name)		
Disabilities and/or Special Needs		

	Child 3	Child 4
Child's Full Name		
Date of Birth (month/day/year)		
Child is Currently Living With (Name)		
Disabilities and/or Special Needs		

☐ Check this box if there are no children.

☐ Check this box if there are more than 4 children. Attach an extra page to provide the details of those children.

Fill in the income information for both parties for the current year and the 3 most recent tax years below (to the best of your knowledge)

Applicant's Current Annual Income (net of union and other dues)	\$
Applicant's Income for Year 20_____	\$
Applicant's Income for Year 20_____	\$
Applicant's Income for Year 20_____	\$
Respondent's Current Annual Income (net of union and other dues)	\$
Respondent's Income for Year 20_____	\$
Respondent's Income for Year 20_____	\$
Respondent's Income for Year 20_____	\$

Fill in the current and past employment information for both parties below:

Applicant's Current Employment	Job Title:
	Name of Employer:
	Working for this employer since (month/day/year):
	Level of Education Achieved:
Respondent's Current Employment	Job Title:
	Name of Employer:
	Working for this employer since (month/day/year):
	Level of Education Achieved:

Fill in the current support arrangements below:

Child Support currently paid	Paid by:	In the amount of: \$ _____ per month
Spousal or Partner Support currently paid	Paid by:	In the amount of: \$ _____
Other support currently paid	Paid by:	In the amount of: \$ _____

Part B Issues that have been resolved

Check the issues that have been resolved or about which an order has been made: (Provide brief details)

- ☐ Child Support:
- ☐ Parenting (Custody and/or Access):
- ☐ Spousal or Partner Support:
- ☐ Parental or Dependant Support:
- ☐ Division of Matrimonial or Common Law Property:
- ☐ Reimbursement Payments:
- ☐ Adjustments:
- ☐ Other:

Part C Issues that have not been resolved

Check the issues that have not been resolved: (Provide brief details)

- ☐ Child Support:
- ☐ Parenting (Custody and/or Access):
- ☐ Spousal or Partner Support:
- ☐ Parental or Dependant Support:
- ☐ Division of Matrimonial or Common Law Property:
- ☐ Reimbursement Payments:
- ☐ Adjustments:
- ☐ Other:

Set out your position for settlement and a proposal for each of the issues that have not been resolved. Provide information, details, and reasons.

Signature and Date

DATED at _____, this _____ day of _____, 20____.

Print Name of Filing Party

Signature

Signature of Lawyer (if any)